

this is an individual recovery and should proceed as one.

18. 9:00 AM CASE NUMBER: C25-01289

CASE NAME: DEONN MORGAN VS. EAST BAY MUNICIPAL UTILITY DISTRICT (EBMUD)

*HEARING ON MOTION IN RE: DISMISS ACTION FOR FAILURE TO TRANSFER ACTION TO ALAMEDA COUNTY SUPERIOR COURT

FILED BY:

TENTATIVE RULING:

Before the Court is Defendant East Bay Municipal Utility District, Defendant Latrice King, Defendant Deanna Zambrano Vasquez, and Defendant the Board of Directors of EBMUD (collectively, "Defendants")'s motion to dismiss this action without prejudice pursuant to Code of Civil Procedure section 399. The motion is opposed by Plaintiff Deonn Morgan ("Plaintiff" or "Morgan"). Plaintiff is in pro per.

Defendants move on the grounds that the Court ordered the action transferred to Alameda County Superior Court on October 29, 2025 and provided that "Plaintiff shall be responsible for all payment/transfer of the case" in accordance with Code of Civil Procedure section 399; that Plaintiff was served with the notice of entry of the Order After Hearing; that Plaintiff's writ of mandate filed with the California Court of Appeals and the California Supreme Court was denied and did not result in a stay of proceedings; and that more than 60 days have elapsed since Plaintiff was served with notice of entry of the Order After Hearing.

For the following reasons, the motion is **granted** and the action is **dismissed without prejudice**.

Request for Judicial Notice

Plaintiff's unopposed request for judicial notice of pleadings and orders in this case is **granted**. (Evid. Code §§ 452, 453.)

Brief Factual and Procedural History

Plaintiff filed her complaint for (1) unlawful denial of water service, (2) defamation of character, (3) negligence, (4) breach of contract, and (5) intentional infliction of emotional distress on May 7, 2025. On June 18, 2025 Defendants filed a motion to transfer the action to Alameda County Superior Court.

On October 23, 2025, the Court entered a minute order granting Defendants' motion to transfer this action to Alameda County Superior Court pursuant to Code of Civil Procedure section 397(a). The Court entered the proposed order on October 30, 2025 which provided that Plaintiff shall be responsible for all payment/transfer of the case within 30 days of proof of service of this Order After Hearing. Defendants filed a notice of entry of order and proof of service the following day.

The Order After Hearing also provided for a status conference regarding the transfer of the case on November 13, 2025. The minute order for that status conference stated that no action had been taken to transfer the case and directed Plaintiff to contact the clerk's office to make arrangements to

transfer the case and either pay the transfer fee or apply for an additional fee waiver.

The docket also reflects two writ petitions to the Court of Appeal, both denied in January 2026. Defendants filed the instant motion on January 13, 2026.

Analysis

When a case is transferred because venue is proper in a different court, the plaintiff is responsible for paying the transfer costs and fees, and the case is subject to dismissal if there is no payment within 30 days of “service of notice of the transfer order.” (Code Civ. Proc., § 399, subd. (a).)

Here, the Court granted Defendant’s motion to transfer from Contra Costa County to Alameda County pursuant to Code of Civil Procedure section 397(a) on the basis that venue is proper in Alameda County. Plaintiff was ordered to pay fees within 30 days of proof of service of the Court’s Order After Hearing. She did not do so. Additionally, both her petitions to the Court of Appeal were denied and no stay of the proceedings was issued.

Accordingly, the Court will dismiss this action without prejudice pursuant to Code of Civil Procedure section 399.